

## 25STCP03485 25STCP03485

County: los-angeles

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### DEFENDANTS' MOTION TO SEAL

Date: 8/13/26

(1:30 PM)

Case: Samir Sheth v. Hitesh Sheth,  
et al. (25STCP03485)

### TENTATIVE RULING:

Defendants Hitesh Sheth and Nilesh Sheth's Unopposed Motion to Seal Portions of the Declaration of Nilesh Sheth in Opposition to Plaintiff's Motion for Appointment of a Limited Purpose Receiver and Related Relief is DENIED.

### I. BACKGROUND

On September 5, 2025, plaintiff Samir Sheth initiated this action against defendants Hitesh Sheth; Nilesh Sheth; Equitable Properties, LLC; M.S.N. Investments Inc.; Forever Collections, Inc.; Equinox Collections, Inc.; Heirloom Diamond Collection, Inc.; Nice Diamonds, Inc.; S3 Synergy Fund LLC; N.H.S. Properties LLC (collective, "defendants"), concerning a familial business dispute. On March 4, 2026, plaintiff filed the operative First Amended Verified Complaint and Petition. On March 17, 2026, the Court dismissed the writ causes of action per the plaintiff's request.

On May 19, 2026, the Court denied plaintiff's motion for appointment of a limited purpose receiver.

In connection with their opposition to plaintiff's receivership motion, defendants filed motion to seal certain portions of the Declaration of Nileshe Sheth. Based on the court record, no opposition has been received. .

## II. DISCUSSION

Unless confidentiality is required by law, court records are presumed to be open." (CRC Rule 2.550(c).) To grant an order pursuant to California Rules of Court, rules 2.550 and 2.551, the court must expressly find facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

A reasoned decision about whether to seal public court records cannot be made without submissions "(1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations." (HB Fuller Co. v. Doe (2007) 151 Cal. App. 4th 879, 894). The party seeking a sealing order must shoulder the burden of presenting information on the first two steps as he "is presumptively in the best position to know what disclosures will harm him and how." (Id.). "This means at a minimum that the party seeking to seal documents, . . . , must come forward with a specific enumeration of the facts sought to be withheld and the specific reasons for withholding them." (Id.).

Here, defendants request the following portions of the Declaration of Nileshe Sheth to be placed under seal: "(1) the dollar figures in the table set forth in Paragraph 19 of the Nileshe Declaration; (2) Exhibit A to the Nileshe Declaration; and (3) Exhibit B to the Nileshe Declaration." (Mtn. at 4:6-8.) As claimed by defendants, the portions of the declaration that they seek to be sealed contain commercially sensitive, proprietary financial information regarding their businesses. (Haas Decl. ¶ 4.) The harm that they fear is an exposure of their businesses' "internal finances and the partners' individual financial information to competitors and the public." (Haas Decl. ¶ 4.) Defendants

also contend that the proposed sealing is narrowly tailored because it is limited to the financial figures, not the business structure, and that there is no less restrictive means to protect the confidential financial information. (Haas Decl. ¶¶ 5-6.)

Upon consideration of defendants' arguments, the Court finds that the requirements under CRC rule 2.550(d) have not been sufficiently met to overcome the presumption that court records shall open. The Court acknowledges that protecting confidential business and financial interest can be an overriding interest that overcomes the public's right to have access to those records. (See *In re Provident Credit Card Cases* (2002) 96 Cal.App.4th 292, 300; see also *H & M Assocs. V. City of El Centro* (1980) 109 Cal. App. 3d 399, 410 ("In the commercial world, businesses, regardless of their legal form, have zones of privacy which may not be legitimately invaded.")). The Court also notes that there is little to suggest that the public would have much, if any, interest in the financial figures defendants seek to seal. Nevertheless, defendants neither show that "a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed" nor identify "the nature of the harm threatened by the disclosure." Instead, defendants merely assert as a conclusion that the financial information would be exposed to competitors and the public without providing any explanation of how this exposure would materially harm them or how likely it would occur.

Accordingly, defendants' Motion to Seal Portions of the Declaration of Niles Sheth in Opposition to Plaintiff's Motion for Appointment of a Limited Purpose Receiver and Related Relief is DENIED.